

conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” Civil Code § 3294(c)(1).

Defendant Jazzmeet Ahluwalia’s actions as supervisory personnel suggest despicable conduct which was carried out with conscious disregard for the rights or safety of others. Defendant Jazzmeet Ahluwalia knowingly allowed Alvarez, a known aggressor, to escort the Abbushi group out of the Spooontonic Lounge. Doing so was in conscious disregard of human life given Alvarez’s uncontrolled, violent behavior that Defendant Jazzmeet Ahluwalia personally witnessed mere hours prior to the shooting incident. Such conduct warrants punitive damages.

Conclusion

As analyzed above, **Defendants’ motion for summary judgment is denied, summary adjudication of the intentional tort cause of action is granted as to all Plaintiffs.**

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ. (See CCP § 437c(q).)

Defendant’s Evidentiary Objections

OBJ 3: Plaintiffs’ COE Exhibit “F”. **Overruled.**

OBJ 4: Plaintiffs’ COE Exhibit “G”. **Overruled.**

OBJ 5: Plaintiffs’ COE Exhibit “H”. **Overruled.**

OBJ 6: Plaintiffs’ COE Exhibit “I”. **Overruled.**

OBJ 7: Plaintiffs’ COE Exhibit “J”. **Overruled.**

OBJ 8: Plaintiffs’ COE Exhibit “L”. **Overruled.**

OBJ 11: Deposition testimony of Sgt. Joe Coffin (Pltfs. Exh. “M,” p. 67:20 to 68:11). **Overruled.**

OBJ 12: Deposition testimony of Sgt. Joe Coffin (Pltfs. Exh. “M,” p. 81:6- 14). **Sustained.**

OBJ 13: Deposition testimony of Sgt. Joe Coffin (Pltf. Ex. “M,” p. 46:10-19). **Overruled.**

12. 9:00 AM CASE NUMBER: N23-0399
CASE NAME: CHHONG CHOW VS. WALEED SABRAH
***HEARING ON MOTION IN RE: CONSOLIDATE ACTIONS**
FILED BY: CHOW, CHHUONG
TENTATIVE RULING:

Before the Court is a motion to consolidate actions filed by plaintiffs Chhuong Chow and Sarah Poeng Chow. For the reasons set forth, the motion is **granted**. The actions are consolidated for all purposes pursuant to Code of Civil Procedure section 1048(a).

Background

Plaintiff Chhuong Chow initiated this case as an unlawful detainer action to recover possession of a

commercial property from defendant Waleed Sabrah, its tenant under a written lease. The complaint was later amended to add Sarah Poeng Chow, Chhuong Chow's wife, as plaintiff. Ultimately, plaintiffs recovered possession of the property in May 2024, and the case was later formally converted to a regular civil action, in which the remaining claim is for unpaid rent due under the lease. (1/31/2025 Min. Order.)

While this case was pending, Waleed Sabrah filed a separate complaint against the Chows alleging claims for damages for breach of the lease and other related claims, Case No. MSC 23-03175 ("Sabrah Action"). The Chows filed a motion to consolidate the two actions, with motion pleadings filed in this case and in the Sabrah Action. A hearing on the motion to consolidate was scheduled in Department 16 for October 8, 2025 in the Sabrah Action, and the Court in the Sabrah Action vacated the hearing on the ground that a motion to consolidate is to be heard in the low-numbered case. (See 10/8/2025 Min. Order in Sabrah Action; Cal. R. Ct., Rules 3.350(a)(2)(A) and 3.350(a)(1).) (See *also* Local Civ. Rule 3.49 [current] and Local Rule 3.50 [effective January 1, 2025].)

Legal Standards Applicable to Motion for Consolidation

Code of Civil Procedure section 1048 provides, "When actions involving a common question or law or fact are pending before the court, it may order a joint hearing or trial of any or all of the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc. § 1048(a).)

The decision to consolidate is left to the discretion of the trial court. (*Todd Steinberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978-979 ["Code of Civil Procedure section 1048 grants discretion to the trial courts to consolidate actions involving common questions of law or fact. The trial court's decision will not be disturbed on appeal absent a clear showing of abuse of discretion."].)

Procedural Issue

Sabrah filed an opposition to the motion to consolidate in the Sabrah Action prior to the October 8, 2025 hearing scheduled on the motion in Department 16. The minutes of the October 8, 2025 hearing reflect an appearance by Sabrah's counsel, Arlo Hale Smith, and reflect a ruling that specifically stated the hearing on the motion would be held on November 21, 2025 in Department 18. Sabrah has not filed an opposition to the motion in this case. For the reasons set forth below, even if the Court considered the opposition to the motion to consolidate Sabrah filed in the Sabrah Action, the Court concludes the cases should be consolidated for all purposes.

Analysis

Both this action and the Sabrah Action are founded on the written lease covering property owned by the Chows that was leased by Sabrah. The parties to the two actions are the same. The commercial property at issue is the same in both actions. Both actions address the interpretation and enforcement of the lease of that property, and in their complaints, both parties seek damages based on the lease.

Despite knowledge of the hearing on the motion to consolidate set in this case, Sabrah has not filed opposition to the motion in this case for the current hearing. The Court can grant the motion as unopposed as the motion and reply set forth facts and evidence supporting consolidation under Code of Civil Procedure section 1048(a).

Even if the Court considered the opposition filed in the Sabrah Action, Sabrah's arguments do not support denial of the motion. Sabrah primarily argued that counsel for the Chows may be subject to disqualification. The Court's Odyssey system does not reflect that any motion to disqualify counsel has been filed in either case. More important, it is not clear why disqualification of counsel would have any bearing on whether the actions should be consolidated since they involve common questions of fact or law, nor does the opposition present a reasoned analysis explaining why any such disqualification would warrant denial of the motion.

Sabrah does not contest the essential facts summarized above which support consolidation (i.e., same parties, same written lease, same property). Sabrah argued in the opposition in the Sabrah Action that the Chows could file a cross-complaint in the Sabrah Action and dismiss the complaint in this action. The argument essentially concedes the two cases involve common questions of fact or law, which supports the actions being determined together.

13. 9:00 AM CASE NUMBER: N25-1346
CASE NAME: CLAIM OF:EMMA MATUTE VELASQUEZEMMA MATUTE VELASQUEZ
***HEARING ON MINOR'S COMPROMISE**
FILED BY:
TENTATIVE RULING:

Approved.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C23-02833
CASE NAME: DEBRA DRISCOLL VS. DOES 1 THROUGH 100, INCLUSIVE
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM INTERROGATORIES, SET 1**
FILED BY: DRISCOLL, DEBRA
TENTATIVE RULING:

The unserved motion is dropped from calendar. Further, the motion is moot as the clerk's office entered default on 10/30/25.

15. 9:01 AM CASE NUMBER: C23-01992
CASE NAME: JIMMY BURCH VS. EQUITY RESIDENTIAL
***HEARING ON MOTION FOR DISCOVERY QUASH SUBPOENAS DUCES TECUM OF EQUITY**
RESIDENTIAL MANAGEMENT, LLC
FILED BY: BURCH, JIMMY
TENTATIVE RULING:

The subpoenas seek relevant information and are not overbroad. Plaintiff alleges a wide range of physical, neurological and psychological injuries from the subject incident to include numbness, dizziness blurred vision, depression, memory problems, loss of focus, jaw problems and sinus issues. The motion to quash is **denied**.